

PRESS · 14 MAR 2000

L'Officiel de la Franchise no. 6

TYPE

Press article

DATE

14 Mar 2000

SUMMARY SHEET

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Overview: extracts from a franchise glossary published by the magazine L'Officiel de la Franchise, reproducing definitions taken from Yves Marot's book "Le Langage de la Franchise". A documentary item of a scholarly nature, not specific to the Collorafi case file.

Key points

The article deals with several concepts of franchise law and economics: the recruitment of franchisees and the definition of the ideal candidate's profile; refusal to sell, with the rule that the franchisor is entitled to refuse a candidate, unless it does so for the sole purpose of causing harm, and the distinction between passive and active competition between franchisees; European block exemption regulation no. 4087/88 of 30 November 1988, based on article 85 of the Treaty of Rome and applicable until 31 December 1999; return on investment (ROI); and the loi Doubin on pre-contractual information, non-compliance with which does not automatically render the agreement null and void, case law requiring proof that consent was vitiated.

Significance

A contextual document shedding light on the legal framework of franchising invoked in the dispute, notably the refusal to allocate new sites and the obligation to provide pre-contractual information.

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Source: bernardcollorafi.org/en/documents/officiel-franchise-glossary-refusal-to-sell-loi-doubin-2000/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.